CHAPTER 52 Comptroller and Auditor General of India

The Constitution of India (Article 148) provides for an independent office of the Comptroller and Auditor General of India (CAG). He/she is the head of the Indian Audit and Accounts Department [1]. He/she is the guardian of the public purse and controls the entire financial system of the country at both the levels—the Centre and the state. His/her duty is to uphold the Constitution of India and laws of Parliament in the field of financial administration. This is the reason why Dr. B.R. Ambedkar said that the CAG shall be the most important Officer under the Constitution of India[2]. He/she is one of the bulwarks of the democratic system of government in India; the others being the Supreme Court, the Election Commission and the Union Public Service Commission.

Appointment And Term

The CAG is appointed by the President of India by a warrant under his/her hand and seal. The CAG, before taking over his/her office, makes and subscribes before the President an oath or affirmation:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India;
3. to duly and faithfully and to the best of his/her ability, knowledge and judgement perform the duties of his/her office without fear or favour, affection or ill-will; and
4. to uphold the Constitution and the laws.

He/she holds office for a period of six years or upto the age of 65 years, whichever is earlier[2a]. He/she can resign any time from his/her office by addressing the resignation letter to the President. He/she can also be removed by the President on same grounds and in the same manner as a judge of the Supreme Court. In other words, he/she can be removed by the President on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of proved misbehaviour or incapacity.



INDEPENDENCE

The Constitution has made the following provisions to safeguard and ensure the independence of CAG:

1. He/she is provided with the security of tenure. He/she can be removed by the President only in accordance with the procedure mentioned in the Constitution. Thus, he/she does not hold office till the pleasure of the President, though he/she is appointed by him/her.
2. He/she is not eligible for further office, either under the Government of India or of any state, after he/she ceases to hold his/her office.